

ORDINANCE NO. _____

ENTITLED: "ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTH OF DELL RANGE BOULEVARD AND EAST OF GRIFFITH AVENUE.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Crei Wettstein, LLC owner of a portion of the Southwest $\frac{1}{4}$ of the Southeast $\frac{1}{4}$ of Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows: Beginning at the Northeast Corner of Lot 1, Block 1, Northwoods Community Church Subdivision, from which the Southeast Comer of Section 22 bears S.67° 52' 54" E., a distance of 1785.50 feet; thence S.89° 35' 44" E., along the south line of Park Estates, 3rd Filing, a distance of 293.79 feet to the west line of Park Plaza Tech Center, Replat of Tracts 2 and 3; thence S.00°11' 49" E., along said west line, a distance of 30.00 feet to the north line of that parcel recorded in Book 2522, Page 616; thence N.89° 37' 18"W., along said north line, a distance of 293.64 feet to the east line Lot 1, Block I, Northwoods Community Church Subdivision thence N.00° 29' 12" W., along said east line, a distance of 30.14 feet to the Point of Beginning. have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MR Medium-Density Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

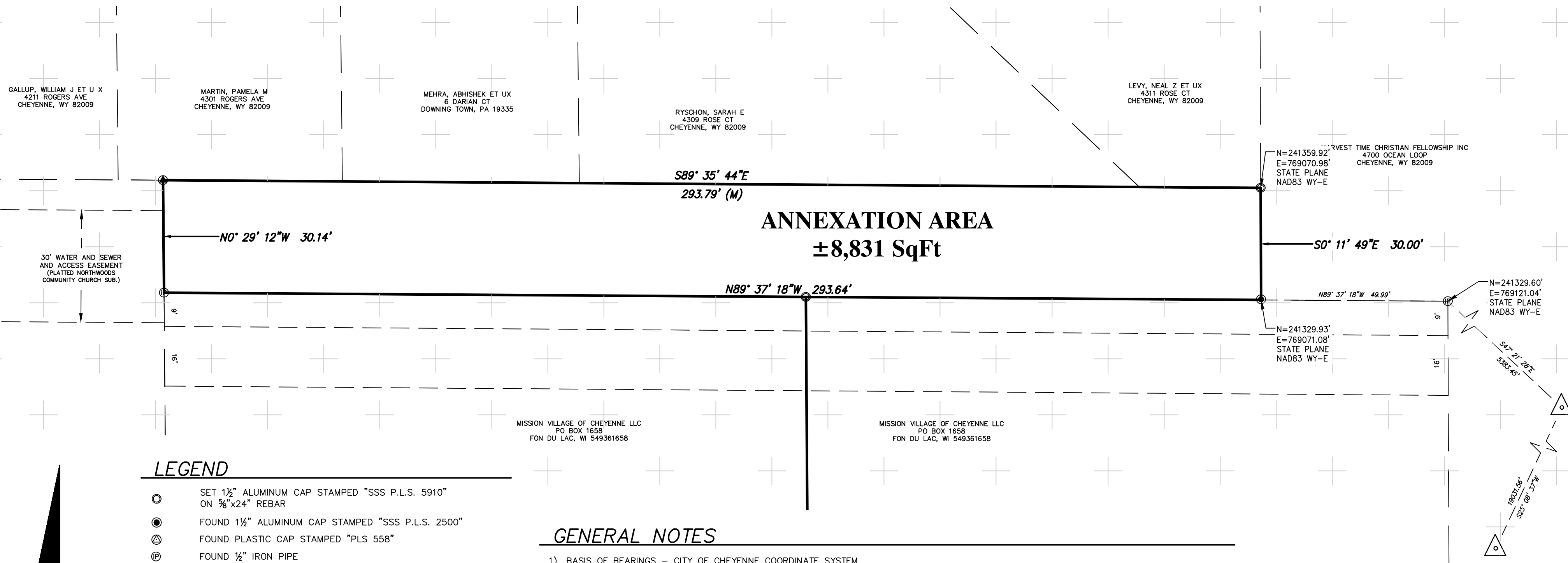
PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published:_____

Exhibit A



LEGEND

- SET 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾"x24" REBAR
- FOUND 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
- ⊗ FOUND PLASTIC CAP STAMPED "PLS 558"
- Ⓢ FOUND ½" IRON PIPE
- △ CITY OF CHEYENNE CONTROL MONUMENT
- (M) DENOTES MEASURED DATA THIS SURVEY
- (R) DENOTES RECORD DATA (PER QUITCLAIM DEED Bk.2522, Pg.616)
- CURRENT CITY OF CHEYENNE INCORPORATED LANDS
- ▨ CURRENTLY UNINCORPORATED LANDS

GENERAL NOTES

- 1) BASIS OF BEARINGS – CITY OF CHEYENNE COORDINATE SYSTEM WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83–2011, SHOWN AS (STATE PLANE NAD83 WY–E); COMBO FACTOR 0.999667183.
- 2) NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN A F.E.M.A. 100–YEAR SPECIAL FLOOD HAZARD AREA AS SHOWN ON F.I.R.M. PANEL No.56021C1092F DATED JANUARY 17, 2007.
- 3) ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾"x24" REBAR.
- 4) DOMESTIC WATER AND SANITARY SEWER SERVICES TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES (BOPU).
- 5) NEAREST FIRE HYDRANT – ±94' DIRECTLY EAST OF BUILDING ENTRANCE (ON LOT 2, MISSION VILLAGE)
- 6) CURRENTLY INCORPORATED LANDS ABOUT 100% OF THE ±647.6' PARCEL PERIMETER. (WS 15–1–402(B))

LAND DESCRIPTION

A portion of the SW1/4SE1/4 of Section 22, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, said tract of land being a portion of that road reservation as described in Book 816, Page 94, Laramie County Clerk's Office and being more particularly described as follows:

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Containing 8,831 square feet, more or less.

APPROVAL

Approved by the Council of the City of Cheyenne, Wyoming
this ____ day of _____, 2017.

Mayor

ATTEST: _____
City Clerk

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

MISSION VILLAGE
SENIOR HOUSING

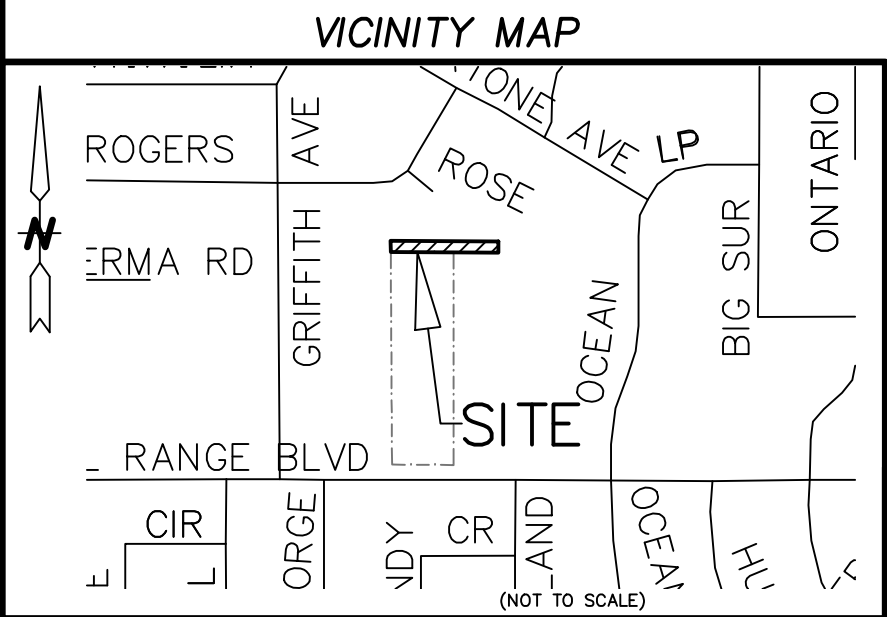
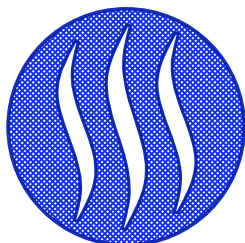
ANNEXATION MAP

FOR A PORTION OF SECTION 22,
TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING.

PREPARED February, 2021

STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS

1102 WEST 19th ST. CHEYENNE, WY. 82001 ○ (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 ○ (307) 322-9789
www.SteilSurvey.com ○ info@SteilSurvey.com



FILING RECORD



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

March 8, 2021

STAFF REPORT

FILE: UDC-21-00042: Mission Village Annexation

REQUEST: An annexation of 8,831 square feet of land

LOCATION: North of Dell Range Boulevard, east of Griffith Avenue.

APPLICANT: CREI Wettstein, LLC

AGENT: Casey Palma Steil Surveying Services

OWNER: CREI Wettstein, LLC

PURPOSE: To close a county enclave and allow for the use of the property as access to the Mission Village Senior Housing Development

PREPARED BY: Mark Christensen, Planner II - Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 8,831 square feet of land to use as access for the Mission Village Senior Housing development. The County Assessor presently shows the tract of land as one small parcel. The land is currently undeveloped in the County. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County MR Medium-density Residential to the City zone of MR Medium-density Residential.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County MR	Undeveloped
North	Urban Residential	MR	Single-family
South	Urban Residential	MR	Vacant (Proposed Multi-family)
East	Urban Residential	MUB	Community Assembly
West	Urban Residential	MR	Community Assembly

The property is currently zoned County MR Medium-density Residential in the County. The property is concurrently proposed to be annexed and rezoned to the MR Medium-density Residential. The MR zone is generally described as a primarily residential zone with compact neighborhood development patterns. The district generally allows a variety of residential uses with some smaller-scale civic or commercial uses.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property will also be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The parcel is 100% contiguous to City limits, making the parcel a natural geographic part of the City. The development of this property for access will benefit those who live within the City, specifically within the Mission Village Senior Housing Development.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation, and the use of the land for access will enhance police and fire protection to the Mission Village Senior Housing development. City water and sewer lines exist in the vicinity and could be extended with the development of the property, though they will not need to as the property is being used for access.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is 100% contiguous.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on February 5, 2021. The public hearing for this annexation is scheduled for March 8, 2021. Twenty (20) business days

prior to the announced public hearing is February 5, 2021. The earliest confirmation of receipt was dated February 6, 2021.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with an urban residential style of development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. Policies in PlanCheyenne support development within the Urban Service Boundary and the utilization of existing infrastructure. Furthermore, PlanCheyenne encourages closing County enclaves.

STAFF REVIEW:

Through the review process, no comments were made on the proposed annexation.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

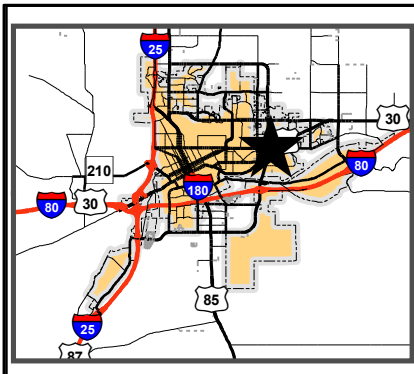
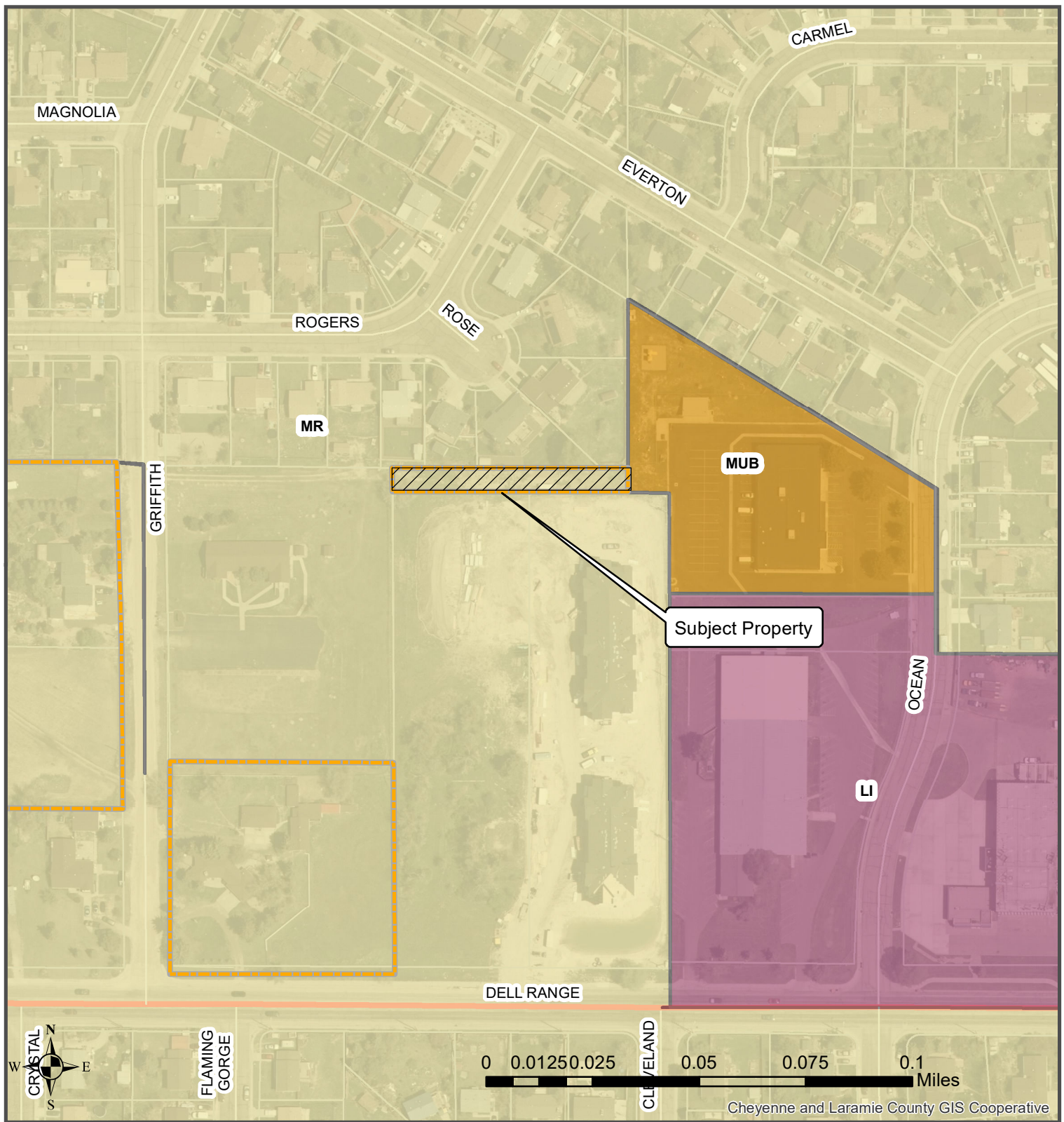
The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Application
4. Applicant-submitted annexation map

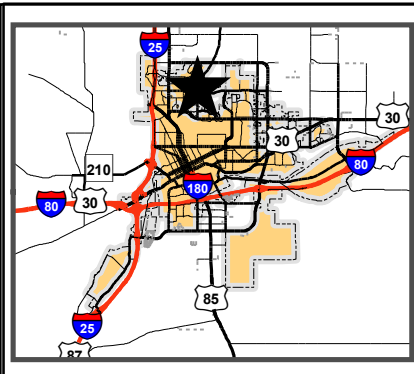
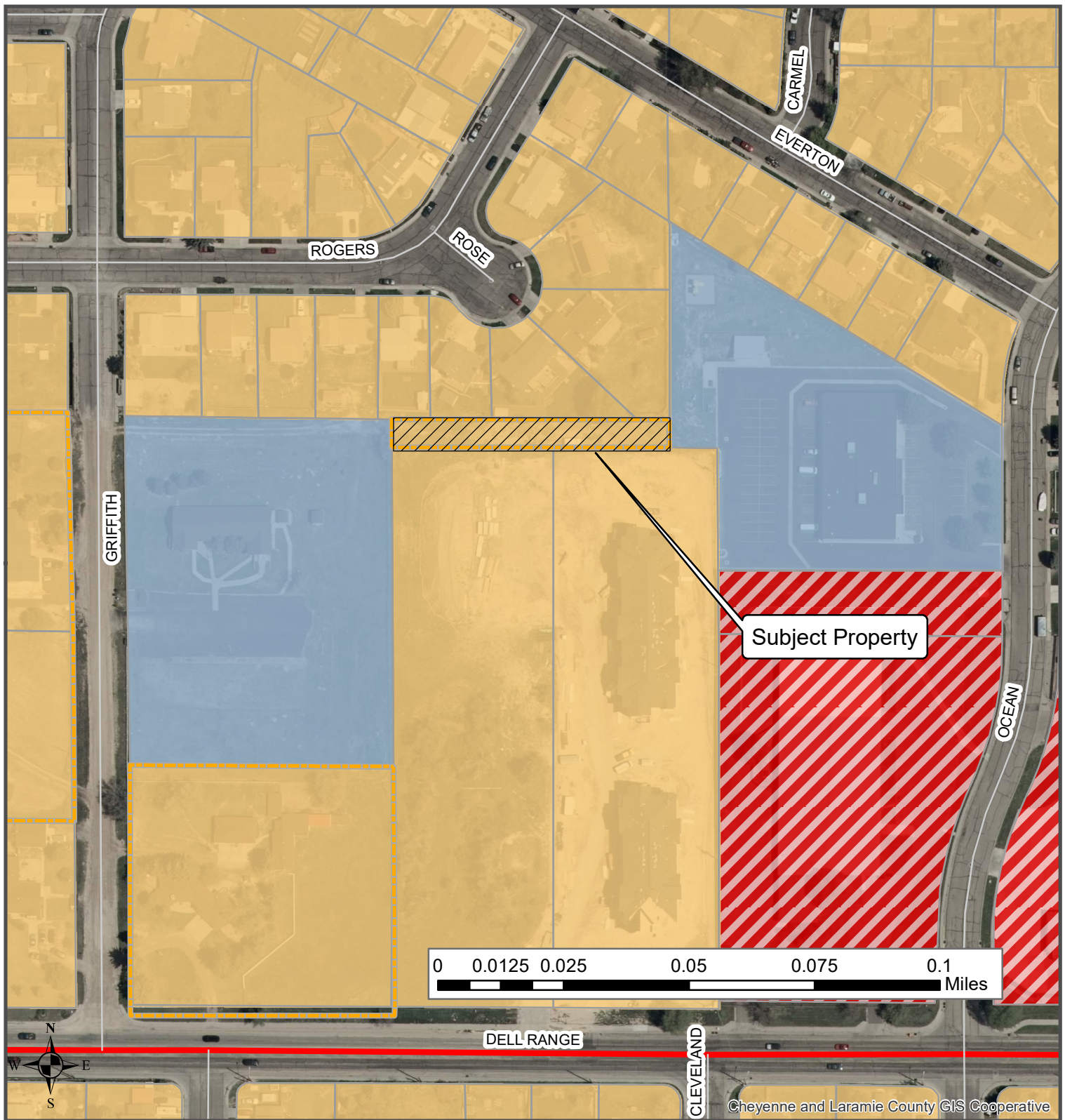


Attachment 1: Zoning Map UDC-21-00042

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-21-00042

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Legend

- | | | |
|--------------------|------------------------------|--------------------------------------|
| Nov19_CityLimits | Agriculture/Rural | Mixed-Use Commercial Activity Center |
| Interstate | Rural Residential | Community/Regional Activity Center |
| Principal Arterial | Urban Transition Residential | Community Park Site |
| Minor Arterial | Urban Residential | HighwayCorridorGateway |
| Major Collector | Mixed-use Residential | Urban Service Boundary |
| Minor Collector | Mixed-use Commercial | Natural/Cultural Resource Area |
| Local | Mixed-use Employment | StateLands |
| Private | Industrial | |
| Platted not built | Central Business District | |
| | Community Business | |
| | Public and Quasi-Public | |
| | Military/Federal | |
| | Open Space and Parks | |

Planning and Development: Annexation Application

General Information

Applicant Name: Required

The Commonwealth Companies c/o Daryn Murphy

Applicant Address: Required

2301 NW Thurman Street, Suite E

Applicant City: Required

Portland

Applicant State: Required

OR

Applicant Zip Code: Required

97210

Applicant Phone: Required

503-956-2970

Applicant Email Required

d.murphy@commonwealthco.net

Representative Name: Required

Steil Surveying Services

Representative Address: Required

1102 W 19th St

Representative City Required

Cheyenne

Representative State: Required

WY

Representative Zip Code: Required

82001

Representative Phone: Required

(307) 634-7273

Representative Email: Required

cpalma@steilsurvey.com

Owner Name: Required

CREI WETTSTEIN LLC c/o Daryn Murphy, The Commonwealth Companies

Owner Address: Required

PO BOX 1658

Owner City: Required

FOND DU LAC

Owner State: Required

WI

Owner Zip Code: Required

54936

Owner Phone: Required

503-956-2970

Owner Email: Required

d.murphy@commonwealthco.net

Who is the primary contact regarding this application?

This person will be the primary staff contact and is authorized by the owner to make decisions regarding this application.

Representative

Letter of Authorization Required

This letter of authorization shall be completed by the legal property owner authorizing the applicant and/or representative to act on behalf of the owner. The signed authorization form shall be uploaded here. All representatives who will make decisions on behalf of the legal owner shall be required to be authorized on this form. Attach multiple copies if necessary.

[Letter of Authorization](#)

Select file

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[Remove file](#)

Project Location (Street Address or General Location): Required

5101 Menard Drive

Assessor's Parcel ID number(s)

14662240002300

Total Project Area

8,831 square feet

Current Zoning

MR (COUNTY)

Proposed Zoning Required

Please indicate your zoning here. For properties in the unincorporated County, please select "other".
Zoning information can be found on the [City Information Map](#)

- ☐ AG - Agricultural
- ☐ AR - Agricultural Residential
- ☐ RR - Rural Residential
- ☐ LR - Low-density Residential
- ☒ MR - Medium-density Residential
- ☐ HR - High-density Residential
- ☐ NR-1 - Neighborhood Residential - Moderate Density
- ☐ NR-2 - Neighborhood Residential - Medium Density
- ☐ NR-3 - Neighborhood Residential - High Density
- ☐ NB - Neighborhood Business
- ☐ CB - Community Business
- ☐ CBD - Central Business District
- ☐ MUR - Mixed-use Residential Emphasis
- ☐ MUB - Mixed-use Business Emphasis
- ☐ MUE - Mixed-use Employment Emphasis
- ☐ LI - Light Industrial
- ☐ HI - Heavy Industrial
- ☐ P - Public
- ☐ MIL - Military
- ☐ PUD - Proposed
- ☐ PUD - Existing
- ☐ Other

Application-Specific Information

Annexations of property to the City are regulated by City Code § 1.16, Unified Development Code § 2.4.2, and Wyo. Statutes § 15-1-401 et seq. Annexation maps must also comply with Wyo. Statutes § 33-29-801. A pre-application meeting is encouraged. The owner and/or agent are required to consult with the Board of Public Utilities (BOPU) prior to submittal of an Annexation application.

For platted lots, provide legal description. If unplatted, type "unplatted."

unplatted por S22T14NR66W

Formal Annexation Petition Required

A formal petition is required. The petition is required to be signed by all owners of record. Download the petition here: [Annexation Petition](#).

Select file

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[Remove file](#)

Board of Public Utilities Clearance Form Required

Completion of a Board of Public Utilities (BOPU) Clearance Form is required prior to application submittal. Download the clearance form here: [BOPU Clearance Form](#).

Select file

BOPU Cle...



Saved

[Remove file](#)

Annexation Map Required

Annexation maps shall be prepared in accordance with the [Annexation Map Standards](#).

Select file

SSS20-311...



Saved

[Remove file](#)

Signature / Certification

Applicant Signature Required

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.



Draw signature below



Upload photo of signature

Select file

CPalma_1...



Saved

[Remove file](#)

Name of signatory:

Casey L Palma, AICP

Please enter an email address for an email receipt. Required

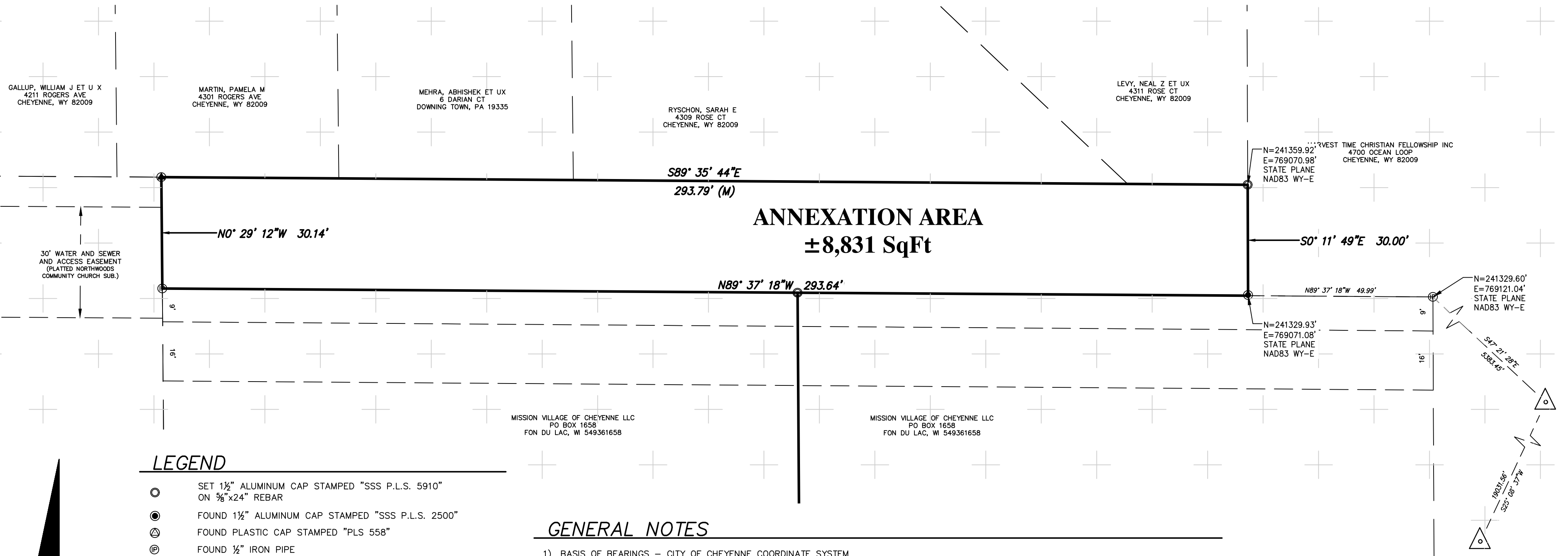
CPalma@SteilSurvey.com

Please complete the following:

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Privacy - Terms

Powered by [OpenForms](#)



LEGEND

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Approved by the Council of the City of Cheyenne, Wyoming
this ____ day of _____, 2017.

Mayor

ATTEST:

City Clerk

CERTIFICATE OF SURVEYOR

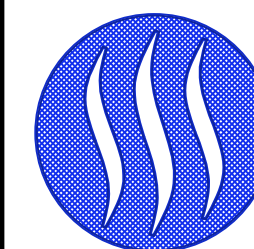
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MISSION VILLAGE SENIOR HOUSING

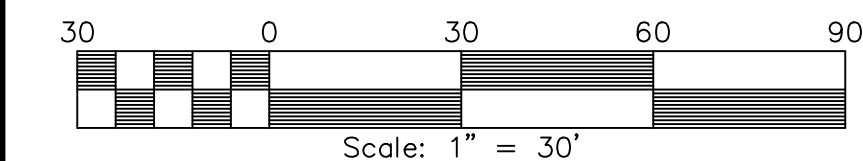
ANNEXATION MAP

FOR A PORTION OF SECTION 22,
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PREPARED February, 2021



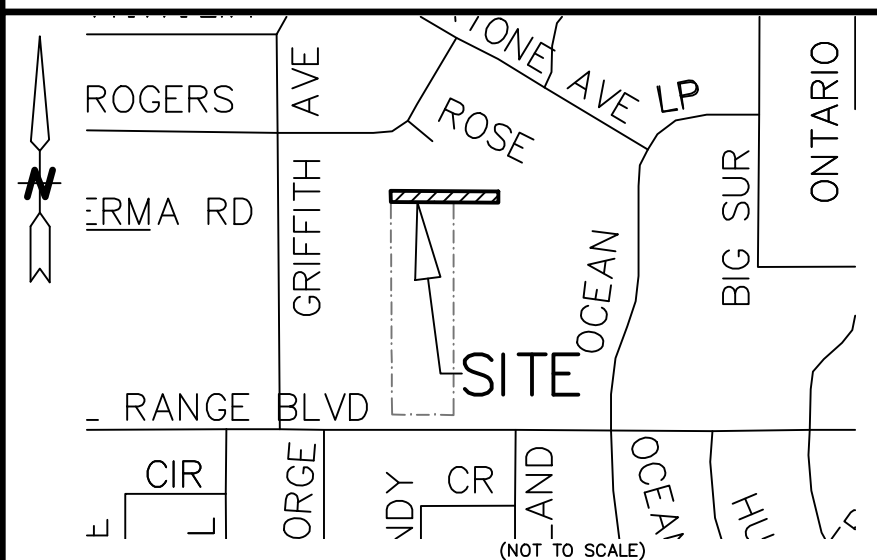
STEIL SURVEYING SERVICES, LLC
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PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com



ZONING

EXISTING ZONE DISTRICT: MR (COUNTY) MEDIUM-DENSITY RESIDENTIAL
PROPOSED ZONE DISTRICT: MR – MEDIUM-DENSITY RESIDENTIAL

VICINITY MAP



FILING RECORD

2015\DRAWINGS\2020 DWG\2020311 M&A DESIGN MISSION VILLAGE PHASE 2\20-311_17218 CU-ANNEX.dwg
REVISED: 2/22/2021